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NATURE OF PROCEEDINGS: Hearing

on Defendant Board of Trustees of the California State University's Demurrer to Plaintiff's First Amended Complaint.

Defendant's Demurrer

is sustained in part and overruled in part.

BACKGROUND

Plaintiff Kyle Conder (Plaintiff) filed this action against Defendant Board of Trustees of the California State University (CSU), also named as California State University, Bakersfield. Plaintiff alleges that CSU terminated his employment as Director of Athletics at CSU, Bakersfield, in retaliation for his reports of alleged criminal activity and safety concerns within the athletics program, and that CSU thereafter agreed to a post-separation settlement resolving his departure but repudiated it.

The First Amended Complaint (FAC) alleges eight causes of action: (1) Retaliation in Violation of Labor Code Section 1102.5; (2) Retaliation in Violation of Labor Code Section 6310; (3) Defamation; (4) Denial of Procedural Due Process; (5) Breach of Contract; (6) Breach of Contract (Settlement Agreement); (7) Promissory Estoppel; and (8) Declaratory Relief.

CSU filed a Demurrer to the First, Second, Fourth, and Eighth causes of action on the ground that each fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10, subd. (e).) Plaintiff filed an Opposition, and CSU filed a Reply.

LEGAL STANDARD

When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or the facts alleged.” [Citation.]” (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315.) As such, courts assume the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) However, they do not accept as true deductions, contentions, or conclusions of law or fact. (Stonehouse Homes LLC v. City of Sierra Madre (2008) 167 Cal.App.4th 531, 538.)

REQUEST FOR JUDICIAL NOTICE

CSU requests judicial notice of California State University Executive Order No. 1116. The request is granted. (Evid. Code, § 452, subd. (c).)

Plaintiff requests judicial notice of the parties’ Stipulation and [Proposed] Order extending CSU’s deadline to file a demurrer and special motion to strike, filed in this action. The request is granted. (Evid. Code, § 452, subd. (d).)

ANALYSIS

I. Exhaustion of Administrative Remedies

The First and Second causes of action allege retaliation in violation of Labor Code sections 1102.5 and 6310. Both rest on the same conduct: Plaintiff’s reporting, in early 2025, of alleged criminal activity and threats to safety within the athletics program to campus police and University officials. (FAC ¶¶ 32, 40.) CSU demurs on the ground that Plaintiff failed to exhaust the internal administrative remedy that a California State University employee must pursue before bringing an action for retaliation based on a protected disclosure.

A California State University employee who alleges retaliation for having made a protected disclosure may file a written complaint with a designated University officer, and “any action for damages shall not be available to the injured party unless the injured party has first filed a complaint with the university officer identified pursuant to subdivision (a), and the university has failed to reach a decision regarding that complaint within the time limits established for that purpose by the trustees.” (Gov. Code, § 8547.12, subds. (a), (c).) A public employee must exhaust an available internal administrative remedy before filing suit for whistleblower retaliation. (Campbell v. Regents of University of California (2005) 35 Cal.4th 311, 321.) Campbell itself required exhaustion of the university's internal remedy for a claim brought under Labor Code section 1102.5, and a disclosure of a condition that may significantly threaten the health or safety of employees or the public is a protected disclosure within the statutory scheme. (Gov. Code, § 8547.2, subd. (e).) A complaint is vulnerable to demurrer on exhaustion grounds when it fails to plead either that administrative remedies were exhausted or that a valid excuse exists for not exhausting. (Parthemore v. Col (2013) 221 Cal.App.4th 1372, 1379.)

Here, the FAC does not allege that Plaintiff filed a retaliation complaint under Government Code section 8547.12 or Executive Order 1116, or that CSU failed to reach a decision on any such complaint. Plaintiff alleges only that he “exhausted any internal administrative remedies to the extent required” and that none were “meaningfully available.” (FAC ¶ 30.) That is a conclusion the Court does not accept as true. The FAC's own allegations show that Plaintiff instead submitted a government claim and a request for reconsideration of his non-retention, and allowed the reconsideration period to lapse during settlement discussions. (FAC ¶¶ 30, 78.) A government claim and a request for reconsideration are not the whistleblower complaint that section 8547.12 requires. That the parties' Stipulation and [Proposed] Order states that “the Parties dispute whether Plaintiff has exhausted the CSU's mandatory internal administrative complaint procedures” does not satisfy Plaintiff's obligation to plead such exhaustion. Nor does the internal procedure fail to reach these claims. The section 1102.5 claim is the type of claim Campbell required to be exhausted, and the section 6310 claim rests on the same reports of safety threats, which are protected disclosures within the scope of the internal remedy.

Plaintiff's arguments for why he was excused from first exhausting administrative remedies are unavailing. Plaintiff argues that CSU is

estopped from asserting exhaustion because settlement negotiations induced him to forgo administrative remedies, and that his correspondence substantially complied with the procedure.

A. Estoppel

“[A] government entity will be estopped from asserting as a defense a failure to exhaust administrative remedies when a government agent has negligently or intentionally caused a party to fail to comply with a procedural precondition to recovery.” (Shuer v. County of San Diego (2004) 117 Cal.App.4th 476, 486.) The FAC alleges no representation by CSU that the complaint procedure did not apply or that its deadline was tolled; it alleges only that the parties discussed settlement. Settlement negotiations, without more, do not constitute conduct that misleads a plaintiff into concluding he had no administrative recourse. (See Shuer, *supra*, 117 Cal.App.4th at p. 487.)

B. Substantial Compliance

Nor has Plaintiff alleged substantial compliance. Substantial compliance requires a bona fide attempt to comply with the governing procedure and cannot be predicated on a complete failure to comply. (Stromberg, Inc. v. Los Angeles County Flood etc. Dist. (1969) 270 Cal.App.2d 759, 762-763.) The writings the FAC describes how Plaintiff sought reconsideration of the non-retention, proposed a negotiated resolution, and presented a government claim. (FAC ¶¶ 21, 30.) The FAC does not allege any writing indicating an intent to invoke the retaliation-complaint procedure. The First and Second causes of action therefore do not allege facts showing exhaustion or a recognized excuse. Accordingly, the Demurrer to the First and Second causes of action is sustained with leave to amend.

II. Procedural Due Process

The Fourth cause of action alleges that CSU deprived Plaintiff of procedural due process by terminating him and by publicizing stigmatizing reasons for his separation, without notice or any opportunity to be heard. (FAC ¶¶ 57-59.) Plaintiff asserts both a property interest in continued employment and a liberty interest in his reputation. (FAC ¶ 57.)

The property-interest theory fails. Public employment in California is held by statute, not by contract, and no employee has a vested contractual right to continue in employment beyond the terms fixed by law. (*Miller v. State of California* (1977) 18 Cal.3d 808, 813.) Plaintiff alleges that he served as an at-will Management Personnel Plan employee (see Cal. Code Regs., tit. 5, § 42723), and an at-will public employee has no property interest in continued employment. Implied-in-fact promises cannot create a property interest that overrides the statutory at-will character of the position. (*Kim v. Regents of University of California* (2000) 80 Cal.App.4th 160, 164-165.) *Skelly v. State Personnel Board* (1975) 15 Cal.3d 194, on which Plaintiff relies, concerned the property interest of a permanent civil service employee and does not aid an at-will employee.

The liberty-interest theory, however, is sufficiently pleaded. A public employee who has no property interest in continued employment may still possess a protected liberty interest where the termination is accompanied by the public disclosure of false charges that stigmatize the employee's reputation or seriously impair the opportunity to obtain other employment; in that circumstance the employee is entitled to notice and an opportunity to clear his name. (*Lubey v. City and County of San Francisco* (1979) 98 Cal.App.3d 340, 345-346.) The FAC alleges that CSU publicly disseminated statements, in connection with Plaintiff's separation, implying that he mishandled allegations of criminal misconduct and was removed for cause; that the statements were false; that they impaired his ability to obtain comparable employment; and that CSU afforded him no opportunity to refute them. (FAC ¶¶ 26, 47, 58, 59.) Taken as true and liberally construed, those allegations state a due process claim based on the deprivation of a liberty interest. CSU's contention that the challenged statements are privileged under Civil Code section 47 raises questions that cannot be resolved on the face of the pleading.

Because the Fourth cause of action states a claim under the liberty-interest theory, the Demurrer to it cannot be sustained even though the property-interest theory fails. A demurrer does not lie to part of a cause of action. (*PH II, Inc. v. Superior Court*, supra, 33 Cal.App.4th at p. 1682.) Accordingly, the Demurrer to the Fourth cause of action is overruled.

III. Declaratory Relief

The Eighth cause of action seeks a declaration that the alleged 2025 settlement agreement is valid and binding and that CSU must perform its terms, including correcting Plaintiff's employment record and issuing an agreed public statement. (FAC ¶¶ 85-89.) CSU demurs on the ground that the claim duplicates the Sixth cause of action for breach of the settlement agreement.

Declaratory relief operates prospectively to set controversies at rest, and where there is an accrued cause of action for an actual breach of contract, declaratory relief may be denied. (*Osseous Technologies of America, Inc. v. DiscoveryOrtho Partners LLC* (2010) 191 Cal.App.4th 357, 366.) “The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues.” [Citation.] ‘Under section 1061 of the Code of Civil Procedure, the court may refuse to exercise the power to grant declaratory relief where such relief is not necessary or proper at the time under all of the circumstances.’” (*Cal. Ins. Guar. Ass'n v. Superior Court* (1991) 231 Cal.App.3d 1617, 1623-1624.)

The controversy the Eighth cause of action identifies is whether the settlement is binding and whether CSU must perform it. That is the same controversy the Sixth cause of action presents, which alleges that CSU breached the settlement by refusing to treat Plaintiff's separation as a resignation, correct his record, and issue the agreed statement. (FAC ¶¶ 77-79.) The alleged breach has already accrued, and the record correction and corrective statement Plaintiff seeks are remedies obtainable through the contract claim. The declaratory relief claim adds no issue, theory, or relief beyond that claim. Accordingly, the Demurrer to the Eighth cause of action is sustained without leave to amend.

CONCLUSION

The Demurrer is sustained as to the First and Second causes of action with 20 days leave to amend, overruled as to the Fourth cause of action, and sustained as to the Eighth cause of action without leave to amend.